

**SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX**Index #
Date of filing:

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MILDRED GALARZA, as Administrator of the Estate of
ARIEL GALARZA and MILDRED GALARZA,
individually,Plaintiff designates Bronx
County as the place of trial

Plaintiffs,

Basis of the venue is the Locus
of Occurrence

-against-

SUMMONSTHE CITY OF NEW YORK, POLICE SERGEANT
WILLIAM MELROSE and JOHN DOES-Police Officers,
whose names are not yet known or identified,Plaintiff resides at
615 East 104th Street, Apt.# 519
Brooklyn, New York 11236

Defendants.

County of Kings

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:THE CITY OF NEW YORK
100 Church Street
New York, New York 10007**Plaintiff's attorneys:**RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020POLICE SERGEANT WILLIAM MELROSE
c/o New York City Police Department- 45th
Precinct
2877 Barkley Avenue
Bronx, New York 10466Dated: Brooklyn, New York
September 14, 2017

**SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX**

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MILDRED GALARZA, as Administrator of the Estate of
ARIEL GALARZA and MILDRED GALARZA,
individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE SERGEANT
WILLIAM MELROSE and JOHN DOES-Police Officers,
whose names are not yet known or identified,

Defendants.

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Plaintiff, by her attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

THE PARTIES AND FACTUAL ALLEGATIONS

1. That at the time of his death on November 2, 2016, and at all times hereinafter mentioned, plaintiff decedent, ARIEL GALARZA, was a resident of the County of Bronx, City and State of New York.
2. The plaintiff, MILDRED GALARZA, was the sister of the decedent, ARIEL GALARZA, and a resident of the County of Bronx, City and State of New York.
3. That prior to the commencement of this action, MILDRED GALARZA, was appointed administrator of the Estate of ARIEL GALARZA, decedent, by Order of the Honorable Nelida Malave-Gonzalez, a Surrogate of the County of Bronx dated January 18, 2017.
4. The cause of action herein alleged arose in the County of Bronx, City and State of New York.
5. That the defendant, THE CITY OF NEW YORK, at all times hereinafter mentioned was a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

6. That the defendant THE CITY OF NEW YORK maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

7. That prior hereto on January 31, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

8. That on May 2, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing of the plaintiff, MILDRED GALARZA, was held.

9. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed POLICE SERGEANT WILLIAM MELROSE, as an agent, servant and/or employee.

10. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed JOHN DOES-Police Officers, whose names are not known or identified, as agents, servants and/or employees.

11. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, decedent, ARIEL GALARZA, was lawfully present in the premises known as 1840 Mayflower Avenue, County of Bronx, City and State of New York.

12. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, plaintiff, decedent, ARIEL GALARZA, was approached and was assaulted, battered and falsely arrested and by the defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

13. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, plaintiff, decedent, ARIEL GALARZA, suffered injuries from the assault and battery. While in handcuffs, the plaintiff, decedent, ARIEL GALARZA, was struck by taser

and/or another conductive energy device by the defendant, POLICE SERGEANT WILLIAM MELROSE, causing the decedent plaintiff, ARIEL GALARZA, to suffer a cardiac arrest which resulted his death.

14. That the use of a taser and/or another conductive energy device on the decedent plaintiff, ARIEL GALARZA, was without reason or provocation.

15. That the use of a taser and/or another conductive energy device on the decedent plaintiff, ARIEL GALARZA, was without probable cause.

16. The aforementioned use of a taser and/or another conductive energy device was performed knowingly, intentionally and willfully.

17. The aforementioned use of a taser and/or another conductive energy device was performed negligently and recklessly.

18. The aforementioned use of a taser and/or another conductive energy device caused the decedent plaintiff, ARIEL GALARZA to suffer a cardiac arrest which then led to his death.

19. At no time during the events described above or as the events occurred did the defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, have a probable cause to use a taser and/or another conductive energy device on the decedent plaintiff, ARIEL GALARZA.

20. The actions of defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, were performed within the scope of their employment and authority for whose acts the defendant, THE CITY OF NEW YORK, are liable under the doctrine of respondeat superior.

21. The actions of the defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, were performed within the scope of their employment and authority for whose acts the defendant, THE CITY OF NEW YORK, in a negligent, careless and reckless manner so as to result in the death of the decedent plaintiff, ARIEL GALARZA.

22. By reason of said assault, battery, false arrest and the use of a taser and/or another conductive energy device, the decedent plaintiff, ARIEL GALARZA, was caused to suffer severe physical injuries and pain and suffering including a cardiac arrest resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror as a result of the negligence of the defendants herein.

**AS AND FOR A FIRST CAUSE OF ACTION FOR FOR ASSAULT
AND BATTERY ON BEHALF OF MILDRED GALARZA, AS
ADMINISTRATOR OF THE ESTATE OF ARIEL GALARZA**

23. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "22" herein, as though more fully set forth herein at length.

24. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, ARIEL GALARZA, was lawfully present in the premises known as 1840 Mayflower Avenue, County of Bronx, City and State of New York.

25. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, plaintiff, decedent, ARIEL GALARZA, was approached and was assaulted, battered and falsely arrested and by the defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

26. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, plaintiff, decedent, ARIEL GALARZA, suffered injuries from the assault and battery. While in handcuffs, the plaintiff, decedent, ARIEL GALARZA, was struck by taser and/or another conductive energy device by the defendant, POLICE SERGEANT WILLIAM MELROSE, causing the decedent plaintiff, ARIEL GALARZA, to suffer a cardiac arrest which resulted his death.

27. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, the discharge of taser and/or another conductive energy device by the

defendant, POLICE SERGEANT WILLIAM MELROSE, was in violation of police guidelines and protocol relating to the use or discharge of a taser and/or another conductive energy device.

28. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, the discharge of a taser and/or another conductive energy device by POLICE SERGEANT WILLIAM MELROSE, upon the decedent plaintiff, ARIEL GALARZA, was performed knowingly, intentionally and willingly.

29. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault, battery, false arrest and discharge of a taser and/or another conductive energy device upon the decedent plaintiff, ARIEL GALARZA, was performed knowingly, intentionally and willfully.

30. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault, battery, false arrest and discharge of a taser and/or another conductive energy device upon the decedent plaintiff, ARIEL GALARZA, which resulted the suffering of a cardiac arrest and then to his death, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

31. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, assault, battery and discharge of the taser gun/ or another conductive energy device upon the decedent plaintiff, ARIEL GALARZA, was without probable cause.

32. By reason of said assault, battery, false arrest and the use of a taser and/or another conductive energy device, the decedent plaintiff, ARIEL GALARZA, was caused to suffer severe physical injuries and pain and suffering including a cardiac arrest resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror as a result of the negligence of the defendants herein.

33. By reason of the foregoing, the plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, demands judgment for assault and battery against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE SERGEANT

WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, in a sum exceeding the jurisdictional limits of all the lower courts

**AS AND FOR A FIRST CAUSE OF ACTION FOR WRONGFUL
DEATH ON BEHALF OF MILDRED GALARZA, AS
ADMINISTRATOR OF THE ESTATE OF ARIEL GALARZA**

34. The plaintiffs repeat and reallege each and every allegation set forth above numbered "1" through "33" inclusive with the same force and effect as if more fully set forth at length herein.

35. That on November 2, 2016, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, ARIEL GALARZA, was lawfully at the aforesaid location when he was caused to be struck by a taser and/or another conductive energy device as a result in suffering a cardiac arrest which resulted in his death by defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, while acting within the scope of their employment with the defendants, THE CITY OF NEW YORK.

36. That the use of a taser and/or another conductive energy device on the decedent plaintiff, ARIEL GALARZA, was without reason or provocation.

37. That the use of a taser and/or another conductive energy device on the decedent plaintiff, ARIEL GALARZA, was without probable cause.

38. The aforementioned use of a taser and/or another conductive energy device was performed knowingly, intentionally and willfully.

39. The aforementioned use of a taser and/or another conductive energy device was performed negligently and recklessly.

40. The negligence of all defendants contributed to the use of a taser gun/ or another conductive energy device on the decedent plaintiff, ARIEL GALARZA.

41. The recklessness of defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, contributed to the use of

a taser and/or another conductive energy device on the decedent plaintiff, ARIEL GALARZA.

42. The aforementioned the use of a taser and/or another conductive energy device was performed without reason or provocation.

43. The aforementioned the use of a taser and/or another conductive energy device resulted in the wrongful death of the decedent plaintiff, ARIEL GALARZA.

44. That at all times hereinafter mentioned, defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, engaged in the actions and conduct alleged herein in their official capacity as New York City Police Officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

45. By reason of the foregoing, the plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, demands judgment for wrongful death against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENCE
ON BEHALF OF MILDRED GALARZA, AS ADMINISTRATOR
OF THE ESTATE OF ARIEL GALARZA**

46. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "45" herein, as though more fully set forth herein at length.

47. That said incident and the injuries including the suffering of a cardiac arrest and death of the decedent plaintiff, ARIEL GALARZA, as a result of a taser and/or another conductive energy device was caused solely by the negligence, carelessness, and recklessness of defendant, THE CITY OF NEW YORK, through its agents, servants, employees and the police officers involved, including but not limited to POLICE SERGEANT WILLIAM MELROSE and JOHN

DOES-Police Officers, both directly and vicariously.

48. Such negligence consisted of negligence in training, hiring, supervision and retention of the police officers involved in this incident; in failing to properly train police officers, including but not limited to POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, in the use and operation of a taser gun/ or another conductive energy device ; in failing to observe the existing police department protocols for police officers designed to govern the use of deadly lethal force and the use and discharge of a taser gun causing serious injuries both physical and emotional resulting in death, conscious pain and suffering, pre impact terror arising and resulting the use of a taser and/or another conductive energy device on the plaintiff and further; in failing to use care in the performance of police duties as reasonably prudent and careful police officers would have used in similar circumstances; in hiring and retaining persons who were unfit to serve as police officers; failing to properly investigate their background; in failing to train and instruct police officers, especially regarding the use and abuse of power while in the field; in failing to give police officers proper instructions on the use of force, use of a taser gun/ or another conductive energy device including proper discharge of said weapons, more specifically with regard to their training as to the use of a taser and/or another conductive energy device in public; improperly supervised police officers in the field; failing to properly supervise the officers in the field, including the officers, the staff, administration and processing of persons suspected of violating laws of this State which allowed the death of the decedent plaintiff, ARIEL GALARZA, and the improper assembly of a taser and/or another conductive energy device by said officers immediately prior to its use on the decedent plaintiff, ARIEL GALARZA, which resulted in his death.

49. Such negligence consisted of negligence in training, hiring, supervision and retention of the police officers involved in this incident; in failing to properly train police officers, including but not limited to POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, with regards to proper conduct and responses under a variety of situations, including but not limited to handling situations involving emotionally

disturbed persons; in failing to properly supervise officers in the field, including but not limited to POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified, as well as the staff and administration in the process of persons suspected of violating the law of this State, specifically the decedent plaintiff, ARIEL GALARZA, who suffered a cardiac arrest and then led to his death after the use of taser and/or another conductive energy device by the defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES-Police Officers, whose names are not known or identified; in failing to implement an appropriate system for dispatching officers, including the officers herein, to handle situations involving emotionally disturbed persons, specifically decedent plaintiff, ARIEL GALARZA, who was assaulted, battered and injured as well as suffering a cardiac arrest after being struck by taser and/or another conductive energy device which ultimately led to his death.

50. The defendant, THE CITY OF NEW YORK, through its agents, servants, employees and the police officers involved, including but not limited to POLICE SERGEANT WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, were negligent, reckless and careless in the use of a taser and/or another conductive energy device on the decedent plaintiff, ARIEL GALARZA.

51. As the result of said negligence, the decedent plaintiff, ARIEL GALARZA, was caused to suffer severe physical injuries and pain and suffering including a cardiac arrest resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror.

52. By reason of the foregoing, the plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, demands judgment for negligence against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE SERGEANT WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING
AND RETENTION OF MILDRED GALARZA, AS ADMINISTRATOR
OF THE ESTATE OF ARIEL GALARZA**

53. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "52" herein, as though more fully set forth herein at length.

54. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of POLICE SERGEANT WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, who assaulted, battered and improperly use a taser and/or another conductive energy device on the decedent plaintiff, ARIEL GALARZA, who suffered injuries including a cardiac arrest which ultimately led to his death.

55. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of POLICE SERGEANT WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, who failed to act as reasonably prudent police officers would have under the circumstances after the use a taser and/or another conductive energy device on the decedent plaintiff, ARIEL GALARZA, who suffered injuries including a cardiac arrest which ultimately led to his death.

56. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, and continued to employ them and allowed them to be in contact with the public at large.

57. By reason of the foregoing, the plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, demands judgment for negligent hiring and retention against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE SERGEANT

WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL RIGHTS
VIOLATION ON BEHALF OF MILDRED GALARZA, AS
ADMINISTRATOR OF THE ESTATE OF ARIEL GALARZA**

58. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "57" herein, as though more fully set forth herein at length.

59 That at all times hereinafter mentioned, the defendant, POLICE SERGEANT WILLIAM MELROSE, engaged in the actions and conduct alleged herein in his official capacity as a New York City police officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

60. That at all times hereinafter mentioned, the defendant, JOHN DOES- Police Officers, whose names are not known or identified, engaged in the actions and conduct alleged herein in his official capacity as a New York City police officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

61. That such actions served to deprive the decedent plaintiff, ARIEL GALARZA, of the rights and privileges of the **United States Constitution, the Fourth (4th) and Fourteenth (14th) Amendment of the U.S. Constitution and Sec. 1983 of 42 U.S.C.** In particular, he was deprived of his right to due process of law, of his right to happiness, to liberty, to be free from physical injury and the unwarranted use of physical force, and ultimately to the most fundamental right -his right to life.

62. That the defendant, THE CITY OF NEW YORK, had as a matter of policy and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct it's police officers, including the officers at the scene in this case, regarding the protection of the constitutional rights of citizens.

63. Such policy, practice and deliberate indifference has been described in excruciating detail in the various investigations and commissions into the Police Department. It has served to encourage and sanction the police officers' unlawful conduct described above, and was the approximate cause of the violations of the decedent plaintiff, ARIEL GALARZA's, civil rights on the day of November 2, 2016.

64. By reason of the foregoing, the plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, demands judgment for civil rights violation against the defendants, THE CITY OF NEW YORK, including but not limited to POLICE SERGEANT WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AS TO DEFENDANTS, POLICE SERGEANT WILLIAM MELROSE
and JOHN DOES-POLICE OFFICERS, WHOSE NAMES ARE NOT
KNOWN OR IDENTIFIED, ON BEHALF OF MILDRED GALARZA,
AS ADMINISTRATOR OF THE ESTATE OF ARIEL GALARZA**

65. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "64" herein, as though more fully set forth herein at length.

66. The actions of the defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, herein-above alleged, were malicious, willful and grossly negligent.

67. The defendants, POLICE SERGEANT WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, committed the unlawful and negligent acts herein-above alleged, after the use a taser and/or another conductive energy device on the decedent plaintiff, ARIEL GALARZA, who suffered injuries including a cardiac arrest which ultimately led to his death.

68. By reason of the foregoing, the plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, demands judgment for punitive damages against the

defendants, THE CITY OF NEW YORK, including, but not limited to POLICE SERGEANT WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR LOSS OF
SERVICES ON BEHALF OF MILDRED GALARZA,
AS ADMINISTRATOR OF THE ESTATE OF ARIEL GALARZA**

69. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "68" herein, as though more fully set forth herein at length.

70. That at all times hereinafter mentioned, the plaintiff, MILDRED GALARZA, was the sister of the decedent plaintiff, ARIEL GALARZA, and as such plaintiff, MILDRED GALARZA, was entitled to the society and services of the decedent plaintiff, ARIEL GALARZA.

71. By reason of the aforementioned negligence of the defendants, the plaintiff, MILDRED GALARZA, was deprived of the society and services of the decedent plaintiff, ARIEL GALARZA, and shall forever be deprived of said society and services.

72. As a result of the aforementioned negligence, the plaintiff, MILDRED GALARZA, has expended diverse sums of money in payment of the expenses incurred for the decedent plaintiff, ARIEL GALARZA.

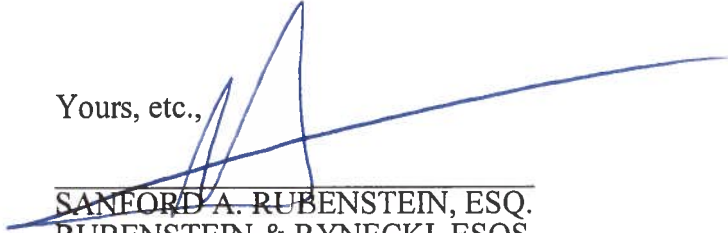
73. By reason of the foregoing, the plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, demands judgment for loss of services against the defendants, THE CITY OF NEW YORK, including but not limited to POLICE SERGEANT WILLIAM MELROSE and JOHN DOES- Police Officers, whose names are not known or identified, in a sum exceeding the jurisdictional limits of all the lower courts.

WHEREFORE, plaintiff, MILDRED GALARZA, as Administrator of the ARIEL GALARZA, for **assault and battery** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **First Cause** of Action; plaintiff,

MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, for **wrongful death** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Second Cause** of Action; plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, for **negligence** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Third Cause** of Action; plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, for **negligent hiring and retention** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth Cause** of Action; plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, for **civil rights violation** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth Cause** of Action; plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, for **punitive damages** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth Cause** of Action; plaintiff, MILDRED GALARZA, as Administrator of the Estate of ARIEL GALARZA, deceased, for **loss of services**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh Cause** of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
September 14, 2017

Yours, etc.,


SANFORD A. RUBENSTEIN, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 16AG11-02

ATTORNEY'S VERIFICATION BY AFFIRMATION

SANFORD A. RUBENSTEIN, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a Partner at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
September 14, 2017



SANFORD A. RUBENSTEIN, ESQ.